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JUL 17 2024

THE RESIDENTIAL TENANCIES BRANCH

BETWEEN

Evan Jeffrey Rosner

Tenant

- and -

Thorwin Properties

Landlord

ORDER

ADDRESS OF RENTAL UNIT:	10 - 585 Corydon Avenue Winnipeg MB R3L 0P3
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The Residential Tenancies Branch held a hearing on **June 21, 2024**.

Appearances: Tenant Yes Landlord Yes

By authority of Section 154 of *The Residential Tenancies Act*, the director orders that:

The landlord shall pay the tenants \$103.99 no later than August 6, 2024.

July 15, 2024

Date

O. Owolabi
Residential Tenancies Officer

If you want to appeal this Order you must apply to the Residential Tenancies Commission, 1650 - 155 Carlton Street, Winnipeg MB R3C 3H8 in person or by mail (telephone: 204-945-2028, toll-free: 1-800-782-8403, fax: 204-945-5453) no later than **August 6, 2024**. The filing fee is \$50.00, payable in cash, certified cheque or money order to The Minister of Finance when the appeal is filed. You must file a copy of this Order with your Notice of Appeal. An appeal suspends the Branch's Order.

This Order, including the Reasons for Decision, is a matter of public record.

REASONS FOR DECISION

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The Residential Tenancies Act and tenancy agreements set out responsibilities for landlords and tenants. Section 55 of the *Act* says that when someone violates those responsibilities and causes a financial loss to the other party, then he or she must compensate the other party for the loss. Sections 152 and 154 of the *Act* say the Branch has authority to make decisions and orders in disputes between landlords and tenants.

The tenants filed a claim with the Residential Tenancies Branch. The Branch held a hearing on June 21, 2024. The tenants submitted a signed declaration that they gave the landlord a copy of the Claim and Notice of Hearing at least 5 days before the hearing. The tenants and landlord came to the hearing and gave evidence.

NOTE: The "Reasons for Decision" is not intended to be a comprehensive record of every word spoken or every piece of evidence submitted during the hearing. Although all of the parties' testimony, evidence, and submissions were carefully considered, I will only reference those pieces that influenced my decision.

TENANT'S CLAIM:

Rent:	\$ 256.00	
Damages to Personal Property:	6,741.00	
Other:	3,540.00	
Total:	\$10,537.00	plus costs.

RENT: At the hearing, the tenant rescinded this claim therefore, I shall not be addressing it in this decision.

DAMAGES TO PERSONAL PROPERTY: The tenant claimed \$6,741.00 for damages. The tenant stated that the landlord had caused three incidents of damage to their property. The tenant stated that the landlord intended to turn their building's storage locker area and the laundry into rental units. They stated they still were in possession of their storage locker when the construction began. The tenant stated that the landlord' construction caused a lot of dust to get into their possessions in the storage locker. The tenant also stated that they were supposed to have the storage locker until May 1, 2024. However, the landlord created a makeshift storage space, broke their lock and moved the tenant's belongings to the new storage space on February 22, 2024. The tenant further stated that the landlord went ahead to move the items in the makeshift locker to one side and started placing their construction equipment in the locker as well. The tenant stated that the landlord also placed their construction equipment on top of the tenant's possession. The tenant stated that there was a tremendous amount of dust on their belongings. The tenant also stated that the landlord damaged their paintings by putting their equipment on top of them. The tenant's belongings included a Golf club set, Ice Skates, teak dining chair set, teak coffee table, litter box, cat carrier, oil paintings, luggage bags and the broken locker lock. The tenant provided photos of their items and of the storage locker as evidence in support of their claim. The tenant provided estimates of the cost of these belongings as evidence in support of their claim. The tenant also provided witness testimony in support of their claim. The witness stated that they saw the tenant's items and stated that they would not allow their pet to use those items due to how dusty they were. The tenant also provided copies of emails with the landlord and their various staff as evidence in support of their claim.

The landlord denied the tenant's claim and stated that they offered to move the tenant's belongings and offered to give the tenant a \$200.00 credit. The landlord stated that they handled the tenant's belongings with care and their staff did not place their equipment on the tenant's belongings. The landlord further stated that they gave the tenant advanced notice about the construction. The tenant willingly left their belongings in the storage locker. The landlord further stated that the tenant did not provide evidence that their belongings were damaged.

Section 55(1) of the Act says a landlord or a tenant who breaches a tenancy agreement or contravenes this Act is liable to compensate the other party to the agreement for loss suffered by that party as a result of the breach or contravention. Section 55(2) of the Act says when a landlord or a tenant becomes liable to compensate another person, the person entitled to claim compensation has a duty to minimize his or her losses. I find that it is not enough for parties to have contravened or breach the Act, the aggrieved party must provide evidence to show that they suffered a loss.

This is the tenant's claim; therefore, the tenant bears the burden of proof. This means that the tenant must demonstrate, through evidence, that they have suffered a loss. To establish that they suffered a loss, the tenant must demonstrate the condition of their belongings when the tenancy began and after construction began. Additionally, the tenant should submit evidence to show the value of these belongings. Evidence the tenant could submit may consist of photographs or videos of the rental unit when the tenancy began and at the point of damage, as well as detailed invoices or receipts for these items.

Based on the balance of evidence, I find that it is reasonable to conclude that the landlord's construction efforts caused dust to get on the tenant's belongings. However, I find that the tenant has not provided evidence to show that these items were not dusty before the construction began. Furthermore, I find that the tenant did not establish that the items were damaged and unusable. As stated earlier, parties have an obligation to minimise their losses. I find that the tenant did not demonstrate that they attempted to minimize their losses in this matter, for instance, by dusting the items when they needed to use them.

However, I find that the tenant was guaranteed the use of their storage locker till May 2024. I find that the landlord broke the tenants lock and caused them to suffer a loss by breaking the lock. As a result, I shall be awarding the tenant the sum of \$38.99 for the broken lock.

The tenant's claim for damages succeeds in the amount of \$38.99.

OTHER: The tenant claimed \$2,700.00 for several claims. At the hearing, the tenant withdrew this claim. Therefore, I shall not be addressing this claim in this decision.

COSTS: The tenant claimed \$840.00 for costs. The tenant claimed \$70 for costs to file the claim. The tenant also claimed \$150.00 for the time spent moving storage and preparing evidence for the hearing. The tenant also claimed \$20.00 for travel to the laundromat.

Section 3 of the Residential Tenancies Costs Regulation says the director may require a person against whom a compensation order has been made, other than an order arising out of an application for an order of possession, to pay costs as follows:

- (a) \$65 less the amount of any exemption from filing fees under section 24.1 of the Residential Tenancies Regulation given to the person awarded costs.
- (b) the reasonable costs incurred, up to a maximum of 10% of the amount of the compensation awarded, if evidence is submitted that those costs exceeded \$65.

At the hearing, it was revealed that the Branch had given an order reducing the rent for withdrawal of laundry and storage services. As this service was withdrawn and the tenant awarded compensation, I do not find it reasonable for the landlord to pay for the tenant's trip to the laundromat. Also, section 12.1 of the Branch's Policy and Procedures Guidebook clearly says the Branch does not award costs for legal fees or the time spent to prepare for or attend a hearing. As a result, the tenant's claim for time spent moving storage and preparing evidence does not succeed.

As the tenant's claim for costs is more than 10% of the amount awarded to the tenant, I shall award the tenant costs of \$65.00 in accordance with section 3(a) of the Residential Tenancies Costs Regulation.

The landlord shall pay the tenant cost of \$65.00.

AWARDED TO TENANT:

Rent:	\$ 38.99
Costs:	65.00
Total:	\$ 103.99

SUMMARY: The landlord shall pay the tenants \$103.99 no later than August 6, 2024.

July 15, 2024

Date


O. Owolabi
Residential Tenancies Officer